

3. If the property is under agricultural use, is the soil considered prime or of statewide agricultural significance?

Yes ☐ No ☒ (If yes, USDA Soil Conservation Service data must be provided.)

4. Is the property adjacent to any public or quasi-public land or buildings? Yes ☐ No ☒
Describe briefly:

5. Does the property lie within an historic district, include an archaeological or rare species site, fall within a Department of Environmental Management designated scenic landscape, river, or within an Executive Office of Environmental Affairs designated Area of Critical Environmental Concern, a Zone II of a public water supply, etc.? Please explain:

6. Will public access be allowed? Yes ☐ No ☒ If yes, explain any limitations, type, etc.:

=====

Prepared by:

Russell Hopping

Address:

401 Ipswich Rd.

Boxford, MA 01921

508 352-5579

telephone number

ATTACHMENTS:

	Enclosed	
a. Conservation Restriction (required)	Yes ☒	No ☐
b. USGS Topographic map with area identified thereon (required)	Yes ☒	No ☐
c. Photographs (required); aerial (if available)	Yes ☒	No ☐
d. Applicable federal, state or local plans, programs (excerpts therefrom) or zoning ordinances, if appropriate	Yes ☐	No ☒
e. Survey, plotmap, or sketch plan (required)	Yes ☒	No ☐
f. Special reports, studies, if available	Yes ☐	No ☒
g. Natural resource inventory, if available	Yes ☐	No ☒
h. Wetlands Order of Conditions C. 131, §40, if applicable	Yes ☐	No ☒
i. C. 40A, §9 Special Permit, if applicable	Yes ☐	No ☒
j. I.R.S. letter ruling, if applicable	Yes ☐	No ☒
k. Charitable status documentation, if applicable	Yes ☐	No ☒
l. Assent of mortgagee(s), if applicable	Yes ☐	No ☒
m. USDA Soil Data, if applicable	Yes ☐	No ☒
n. Other (please specify)	Yes ☐	No ☒

NOTES:

The conservation restriction must be prepared in a form suitable for recording and be approved and signed by the grantor, grantee, and municipal official(s). The applicant may wish to submit a draft of the conservation restriction document for a determination as to whether it is acceptable for approval by the Secretary. This procedure is recommended in situations in which the gift is complex or the applicant needs guidance in drafting an acceptable document. Regardless of whether the applicant files a draft or executed conservation restriction, all required attachments must be submitted for review.

The Division of Conservation Services, as part of its records retention program and in conjunction with the Massachusetts State Archivist, will retain the grantee's baseline data in the State Archives at no cost. Grantees need only submit duplicate originals of the documents and photograph negatives with the application. The documents will be permanently preserved in the State Archives, 220 Morrissey Boulevard, Boston, MA 02125, and will be available for viewing or recovery as needed.

THE ACHENBACH-BOXFORD NOMINEE REALTY TRUST

Trustee's Certificate

We, the undersigned, RACHEL R. ACHENBACH and CAROLYN A. INGRAHAM, as Trustees of THE ACHENBACH-BOXFORD NOMINEE REALTY TRUST, under a Declaration of Trust, dated November 22, 1993, and recorded in the Essex South District Registry of Deeds, Book 12326, Page 392, hereby certify:

- a) that we are the sole Trustees of said Trust;
- b) that the Beneficiaries of said Trust are Rachel R. Achenbach and Carolyn A. Ingraham, as Trustees of The Rachel R. Achenbach 1990 Revocable Trust, dated June 7, 1990, as amended;
- c) that said Trust has not been altered, amended, revoked or terminated;
- d) that the Beneficiaries are above the age of majority and not legally incapacitated; and
- e) that pursuant to said Trust, all of the Beneficiaries have specifically directed us as Trustees to execute and deliver a conservation restriction on a portion of the premises conveyed to us on November 22, 1993, by a deed recorded in said Registry of Deeds, Book 12326, Page 392, to BTA/BOLT, Inc., and to be recorded herewith.

WITNESS our hands and seals this 20 day of August 1997

Rachel R. Achenbach

Carolyn A. Ingraham

COMMONWEALTH OF MASSACHUSETTS

ESSEX, ss.

1997

Then personally appeared the above-named Rachel R. Achenbach and Carolyn A. Ingraham, Trustees as aforesaid, and acknowledged the foregoing to be their free act and deed, before me

Susan Kae Cortucci

NOMTR

Susan Kae Cortucci
Notary Public
My Commission Expires 06/21/2000

Ind 23

MUNICIPAL CERTIFICATION

(We) the undersigned Conservation Commission of Boxford (the certifier/holder) hereby certify that the proposed conservation restriction is in the public interest in that it (describe public benefit):

This scenic, highly visible property on Ipswich Road, a major through road in Boxford, contains a large freshwater wetland, many streams, a pond and forested upland. This undeveloped area of glacial terrain provides a diversity of wildlife habitat. The application of a conservation restriction to this property is consistent with methods of preserving open space recommended in the Boxford Open Space and Recreation Plan of 1994.

Date:

8-7-97

Signed:

Arthur J. Delaney
Donald L. Spivey
Harvey C. R. J.
Laura L. Spivey Spillane
William H. Coolidge
Julia Loderoute

NOTES:

This certification by the conservation commission may be submitted separately from the application and filed with the submission of the executed conservation restriction, it being recognized that the applicant may want to submit the application with a draft copy of the conservation restriction for review prior to actual submission of the executed document.

Conservation restriction lands which overlap municipal boundaries must be approved and certified by the appropriate officials of both municipalities.

The commissioners' certification should state why the property is significant and why the conservation restriction is important.

APPENDIX C

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS DIVISION OF CONSERVATION SERVICES

100 Cambridge Street
Boston, MA 02202
617/727-1552

DATE: _____

MUNICIPALITY: _____

NUMERIC ASSIGNMENT: _____
(Agency use only)

CONSERVATION RESTRICTION FIELD INSPECTION FORM

1. MUNICIPALITY: Boxford LOCATION (street, road, etc.): 437 Ipswich Rd.
2. GRANTOR: Achenbach-Boxford Nominee Realty Trust GRANTEE: BTA/BOLT, Inc
3. NEW SITE: ☒ ADDITION TO SITE: _____ TOTAL ACRES: 10 TERM: _____
4. ARE BUILDINGS INCLUDED? YES ☒ NO _____
If yes, estimate value, condition, and existing or proposed use (include photographs and negatives):
< \$500, Functional, rough shed used for horse supplies
5. PRESENT AND PAST USE OF SUBJECT PROPERTY AND ADJACENT LANDS:
(Please include USGS topographical maps showing subject and adjacent public lands, if any.)
Past - cows
Present - Pasture - horses, farm
6. BRIEF DESCRIPTION OF PROPERTY, INCLUDING NATURAL RESOURCES AND ANY UNIQUE FEATURES:
Tributary of Parker River, estuary?
Mostly wetland
3 tributaries join at western edge of property to flow to Cole's Pond;
huge wetland; man-made pond (~150' x 40')
- a. Are prohibited activities sufficient to protect the resource values? YES ☒ NO _____
- b. Are retained uses compatible with the preservation or protection of the natural resources?
YES ☒ NO _____ (If answers to 6a or 6b are no, please explain in 8 below.)
7. ARE PUBLIC ACTIVITIES PERMITTED? YES _____ NO ☒
If yes, please explain NATURE and SCOPE: _____
8. COMMENTS AND RECOMMENDATIONS: Beautiful property with a wide variety of
topography and vegetation, providing habitat for a great variety of
birds, insects, and animals (mammals, reptiles, amphibians). It is a
naturally rich property and the conservation restriction will
provide important protection of the natural resources.

INSPECTOR: Long L. Seguin, Spillman

DATE: July 28, 1997

APPENDIX C

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS DIVISION OF CONSERVATION SERVICES

100 Cambridge Street
Boston, MA 02202
617/727-1552

DATE: _____
MUNICIPALITY: _____
NUMERIC ASSIGNMENT: _____
(Agency use only)

CONSERVATION RESTRICTION FIELD INSPECTION FORM

1. MUNICIPALITY: BOXFORD LOCATION (street, road, etc.): 437 Ipswich Rd
2. GRANTOR: Actenhach-Bowford Nominee Realty Trust GRANTEE: BTA / BOLT, Inc
3. NEW SITE: ☒ ADDITION TO SITE: _____ TOTAL ACRES: 10 TERM: _____
4. ARE BUILDINGS INCLUDED? YES _____ NO ☒
If yes, estimate value, condition, and existing or proposed use (include photographs and negatives):

5. PRESENT AND PAST USE OF SUBJECT PROPERTY AND ADJACENT LANDS:
(Please include USGS topographical maps showing subject and adjacent public lands, if any.)
past - cows
present - pasture - horses, forest
6. BRIEF DESCRIPTION OF PROPERTY, INCLUDING NATURAL RESOURCES AND ANY UNIQUE FEATURES:
 tributary of Parker River, approx. 2-acre field (mowed every fall),
(not flowing now, but wetland)
3 tributaries along western edge of property, to flow to Cha Road
large wetland; man-made pond (2150' x 415')
- a. Are prohibited activities sufficient to protect the resource values? YES ☒ NO _____
- b. Are retained uses compatible with the preservation or protection of the natural resources?
YES ☒ NO _____ (If answers to 6a or 6b are no, please explain in 8 below.)
7. ARE PUBLIC ACTIVITIES PERMITTED? YES _____ NO ☒
If yes, please explain NATURE and SCOPE: _____
8. COMMENTS AND RECOMMENDATIONS: Beautiful property with a wide
variety of topography and vegetation, providing habitat
for a great variety of birds, insects, and animals (mammals,
reptiles, amphibians). It is a naturally rich property, and
the conservation restriction will provide important protection
of the natural resources.

INSPECTOR: Linda D. Quinn Spillman
ACCOMPANIED BY: Judy Doe BTA/BOLT

DATE: July 28, 1997

CONSERVATION RESTRICTION

BK 14335 PG 127

16. We, the undersigned, RACHEL R. ACHENBACH and CAROLYN A. INGRAHAM, as Trustees of THE ACHENBACH-BOXFORD NOMINEE REALTY TRUST, under a Declaration of Trust, dated November 22, 1993, and recorded in the Essex South District Registry of Deeds, Book 12326, Page 392, for nominal consideration, hereby grant, with quitclaim covenants, to BTA/BOLT, INC., a Massachusetts not-for-profit corporation, having its principal office at 20 Cross Road, Boxford, Essex County, Massachusetts, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on the land located in Boxford described in Exhibit A attached hereto, and incorporated herein by reference (the "Premises"). Said Trustees, as aforesaid, are hereinafter called the "Grantor" and BTA/BOLT, INC. and its successors and permitted assigns are hereinafter called the "Grantee."

Whereas, the Premises provide significant scenic, aesthetic, scientific and educational value in its present state as a natural area and open space which has not been subject to development incompatible with said uses; and

Whereas, the Grantor and Grantee recognize the uniqueness of the Premises as a distinctive Massachusetts landscape embodying the special character of the region in which the Premises is located and have the common purpose of conserving the natural values of the Premises for this generation and future generations; and

Whereas, the Premises contains and consists of freshwater wetlands and forested upland representing a diversity of wildlife habitat; and

Whereas, the Premises comprises part of a highly scenic landscape visible to members of the general public from Ipswich and Valley Roads; and

Whereas, the 1994 Open Space and Recreation Plan of the Town of Boxford identifies conservation restrictions as one of the techniques to help implement the Town's open space goals.

Therefore, in order to preserve the Premises in perpetuity in its present natural scenic and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 183, Section 31 et seq. of the General Laws of Massachusetts, as amended. The terms of this Conservation Restriction are as follows:

1. Prohibited Activities Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses on, over or under the Premises:

- (a) Construction or placing of any building, tennis court, landing strip, mobile home, swimming pool, septic system, road sign, fence, poles, antennas, towers, windmills, solar panels or other temporary or permanent structures or facilities on or above the ground;

SCUTIERE
Box 23

- (b) Dumping or placing of soil or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
- (c) Cutting, removal or destruction of trees, grasses, shrubs or other vegetation;
- (d) Mining, excavating, dredging or removal of loam, peat, sand, gravel, soil rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction;
- (e) Any commercial or industrial use or any institutional use inconsistent with the purposes of this Conservation Restriction;
- (f) Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction;
- (g) Use of the Premises except for agricultural, farming or outdoor recreational purposes or other purposes which permit the Premises to remain predominantly in its natural condition;
- (h) Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control;
- (i) Any other use of the Premises or activity which would impair the conservation values unless such use or activity is necessary and desirable for the protection of the conservation values that are subject to this Conservation Restriction;

2. Reserved Rights. Notwithstanding anything contained in paragraph 1, the Grantor reserves the right to conduct or permit the following activities on the Premises

- (a) The planting of trees and shrubs and the mowing of grass; the grazing of livestock; and the construction and maintenance of appropriate fences necessary in connection therewith and not otherwise inconsistent with the purposes of this Conservation Restriction;
- (b) The cultivation and harvesting of forest products in accordance with such Massachusetts forestry conservation regulations as generally accepted forest management practices, (a) selective pruning and cutting to prevent,

control or remove hazards, disease or insect damage, fire, or to preserve the present condition of Premises, including vistas, woods roads and trails; (b) harvesting trees to provide firewood or construction materials for use on the Premises; (c) following notice to Grantee, the cutting of trees for any purpose, including without limitation commercial timber production, in accordance with a plan, prepared by a professional forester and approved by the Grantee, that is designed to protect the conservation values of the Premises, including without limitation, scenic and wildlife habitat values;

- (c) With the prior written permission of Grantee, measures designed to restore native biotic communities, or to maintain, enhance or restore wildlife, wildlife habitat, or rare or endangered species;
- (d) The maintenance of the pond by removal of aquatic vegetation, and following written notice to Grantees, to maintain (through dredging and other means) and restore said pond;

The exercise of any right reserved by the Grantor under this paragraph 2 shall be in compliance with the then-current Zoning By-Law applicable to the Premises, the Wetlands Protection Act (General Laws Chapter 131, Section 40) and all other applicable federal, state and local law. The inclusion of any reserved right in this paragraph 2 requiring a permit from a public agency does not imply that the Grantee takes any position on whether such permit should be issued.

3. Affirmative Covenants of the Grantor. The Grantor shall pay before delinquency all taxes, assessments, fees and charges levied on or assessed against the Premises by competent authority (collectively "taxes"), and shall furnish the Grantee with satisfactory evidence of payment upon request.

4. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Premises following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Premises, determining compliance with the terms of this Conservation Restriction and preventing, abating or remedying any violations thereof. The Grantee shall have the right, at its sole expense, to perform any act required to preserve, conserve or promote the natural habitat of wildlife, fish or plants located on the Premises. The Grantee shall have the right to erect and from time to time replace, at appropriate locations near the boundaries of the Premises, suitable signs identifying the Grantee as the holder of this Conservation Restriction.

5. Legal Remedies of the Grantee. The rights hereby granted shall include the right to take any and all actions with respect to the Premises as may be necessary or appropriate, with or without order of court, to remedy, abate or otherwise enforce any violations hereof, as well as the right to enforce this Conservation Restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Premises to

its condition at the time of this grant (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of any other rights and remedies available to the Grantee. The Grantor and the successors and assigns of the Grantor covenant and agree to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this

Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred. By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Premises. Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver. If any provision of this Conservation Restriction shall to any extent be held invalid, the remainder shall not be affected.

6. Assignment by the Grantee. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes.

7. Subsequent Transfers. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Premises, including without limitation, a leasehold interest.

8. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

9. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Premises, or any part thereof or interest therein (including a lease). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction.

10. Notice and Approval With Respect to the Grantor's Activities. Whenever notice to or approval by the Grantee is required under the provisions of paragraphs 1 or 2, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefor.

11. Proceeds from Extinguishment: Eminent Domain. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise for purposes of this paragraph to a property right, immediately vested in the Grantee, with a fair market value determined by multiplying the current fair market value of the Premises unencumbered by this Conservation Restriction (minus any increase in value attributable to improvements made after the date of this grant) by the ratio of the value of this Conservation Restriction at the time of this grant to the value of the Premises, without deduction for the value of this Conservation Restriction, at the time of this grant. Such proportionate value of the Grantee's property right shall remain constant. If any change in conditions ever gives rise to extinguishment or other release of the Conservation Restriction under applicable law, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Premises, shall be entitled to a portion of the proceeds equal to such proportionate value, subject however, to any applicable law which expressly provides for a different disposition of proceeds. Whenever all or any part of the Premises or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth therein.

12. Binding Effect: Interpretation. The burdens of this Conservation Restriction shall be deemed to run with the Premises, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Premises, and any person holding any interest therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction. This Conservation Restriction shall be in addition to and not in lieu of any other restrictions or easements of record affecting the Premises. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction; and the Grantor on behalf of themselves and their successors and assigns appoint the Grantee their attorney-in-fact to execute, acknowledge and deliver any such instruments on their behalf. Without limiting the foregoing, the Grantor and their successors and assigns agree themselves to execute any such instrument upon request.

13. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the Registry of Deeds.

14. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Premises terminate upon transfer of that party's interest, except that liability for acts or omissions occurring prior to transfer, and liability for the transfer itself if the transfer is in violation of this Conservation Restriction, shall survive the transfer.

15. Estoppel Certificates. Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor any document requested, including an estoppel certificate, which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

IN WITNESS WHEREOF, the said Rachel R. Achenbach and Carolyn A. Ingraham, Trustees as aforesaid, have hereunto set their hands and seals this 20th day of August 1997.

Carolyn A. Ingraham

Rachel R. Achenbach

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

August 20 1997

Then personally appeared before me the above-named Rachel R. Achenbach and Carolyn A. Ingraham and acknowledged the foregoing instrument to be their free act and deed, before me

DONALD J. SCUTIERE
NOTARY PUBLIC

My Commission Expires Sept. 13, 1999

DDJ / Scutiere

BTA/BOLT, Inc. hereby accepts this Conservation Restriction and agrees to be bound by its terms.

BTA/BOLT, Inc.

By:

Nancy N. Merrill

Nancy N. Merrill, Chairman

Judith A. Gore

Judith A. Gore, President

Dated: Sept. 2, 1997

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on SEPTEMBER 2, 1997 1997, the Selectmen voted to approve the foregoing Conservation Restriction to the BTA/BOLT, INC. for the preservation of the natural resources of said Town pursuant to Massachusetts General Laws, Chapter 184, Section 32.

Kenneth E. Byrne

Duke Brown
Richard

APPROVAL BY SECRETARY

BK 14335 PB

The undersigned Secretary of the Executive Office of Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the BTA/BOLT, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32 Said approval is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Premises, and any such pre-existing rights of the public, if any, are not to be affected by the granting of this Conservation Restriction.

Date:

9-17-97

Theresa A. [Signature]

Secretary, Executive Office
of Environmental Affairs

BY: *[Signature]*
Nancy A. Merrill, Chairman

[Signature]
Judith A. Gore, President

[Signature]
Sept. 5, 1997

APPROVED BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Norfolk, Massachusetts, hereby certify that at a meeting duly held on September 2, 1997, the Selectmen voted to approve the foregoing Conservation Restriction to the BTA/BOLT, INC. for the preservation of the natural resources of said town pursuant to Massachusetts General Laws, Chapter 184, Section 32.

[Signature]
Sept 2 1997

[Signature]

[Signature]

Exhibit "A"

A certain parcel of land situated in Boxford, Essex County, Massachusetts, comprised of the following lots shown on a plan titled "Plan of Land in (West) Boxford, property of Ray J. Strecker et. ux.," dated September 17, 1958, by Essex Survey Service, Reg. Land Surveyors, recorded with the Essex South District Registry of Deeds in Plan Book 92, Plan 9:

- (a) Lot 3B
- (b) Lot 4
- (c) that portion of lot 5A lying north and west of Lot 6 and a line drawn between the southwest corner of Lot 6 and an Essex County Boundary marker lying on the north sideline of Ipswich Road at the northerly terminus of an arc having a length of 234.15 feet and a radius of 500 feet; all as shown on the attached sketch (Exhibit B) titled "Sketch of Achenbach Conservation Restriction, West Boxford, MA"

Being a portion of the premises conveyed to us by deed of Rachel R. Achenbach, dated November 22, 1993, and recorded in the Essex South District Registry of Deeds, Book 12326, Page 392.